

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #01	CCRB Case #: 201506493	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 08/05/2015 1:40 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 2/5/2017	Precinct: 103
Date/Time CV Reported Wed, 08/05/2015 2:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/05/2015 2:21 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mark Sinatra	04720	944174	NARCBQN
2. DT3 Delcar Balcena	5757	943021	NARCBQN
3. POM Eric Moy	04042	949373	NARCBQN
4. DT3 Dimitrios Roidis	07470	935638	QS NARC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 George Katris	1168	943427	NARCBQN
2. DT3 Daniel Ludemann	4386	938892	NARCBQN
3. DT3 Jason Levy	06945	928639	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Mark Sinatra	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Eric Moy	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, PO Eric Moy stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . SGT Mark Sinatra	Force: On August 5, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra used physical force against § 87(2)(b)	C . Substantiated
D . POM Eric Moy	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, PO Eric Moy searched § 87(2)(b)	D . Substantiated
E . SGT Mark Sinatra	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra searched § 87(2)(b)	E . Substantiated
F . SGT Mark Sinatra	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . SGT Mark Sinatra	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra refused to provide his shield number to § 87(2)(b)	G . Substantiated

Officer(s)	Allegation	Investigator Recommendation
H . POM Eric Moy	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, PO Eric Moy refused to provide his shield number to § 87(2)(b)	H . Substantiated
I . DT3 Dimitrios Roidis	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Det. Dimitrios Roidis refused to provide his shield number to § 87(2)(b)	I . Substantiated
J . DT3 Delcar Balcena	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Det. Delcar Balcena searched § 87(2)(b)	J . Substantiated
K . SGT Mark Sinatra	Abuse: On August 5, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra damaged § 87(2)(b) property.	K . Substantiated
L . SGT Mark Sinatra	Abuse: On August 7, 2015, at § 87(2)(b) in Queens, Sgt. Mark Sinatra refused to provide his name and shield number to § 87(2)(b)	L . Substantiated
§ 87(4-b), § 87(2)(g)		

Case Summary

On August 5, 2015, at approximately 1:40 p.m., § 87(2)(b) dropped off his wife, § 87(2)(b) at the methadone clinic located at § 87(2)(b) in Queens. § 87(2)(b) parked his car outside the clinic and waited for § 87(2)(b) who exited the clinic ten minutes later. As § 87(2)(b) began to drive off, he was stopped by an unmarked RMP containing Sgt. Mark Sinatra, PO Eric Moy, and Det. Demitrios Roidis, all of Queens Narcotics (**Allegations A and B**). Sgt. Sinatra instructed § 87(2)(b) and § 87(2)(b) to get out and go to the rear of their vehicle. Sgt. Sinatra shoved § 87(2)(b) as § 87(2)(b) observed § 87(2)(b) being searched by PO Moy on the other side of the car (**Allegations C and D**). § 87(2)(b) walked to the back of the car, where Sgt. Sinatra searched his pockets (**Allegation E**). Sgt. Sinatra then searched § 87(2)(b) car (**Allegation F**). § 87(2)(b) asked Sgt. Sinatra, PO Moy, and Det. Roidis for their names and shield numbers, which all of the officers allegedly failed to provide (**Allegations G, H, and I**). Sgt. Sinatra allegedly told PO Moy and Det. Roidis to handcuff § 87(2)(b) which they did.

Det. Delcar Balcena, also of Queens Narcotics, arrived moments later and searched § 87(2)(b) (**Allegation J**). No contraband was found during any of the searches. When § 87(2)(b) and § 87(2)(b) returned to their vehicle, they observed that Sgt. Sinatra had damaged various parts of the interior, including the center console, HVAC vents, and speaker grilles (**Allegation K**). As the results of the searches were negative, § 87(2)(b) and § 87(2)(b) left the scene after returning to their car. They were not arrested or summonsed.

On August 7, 2015, § 87(2)(b) and § 87(2)(b) observed Sgt. Sinatra in the vicinity of § 87(2)(b) and § 87(2)(b). § 87(2)(b) approached Sgt. Sinatra and asked for his name and shield number. Sgt. Sinatra provided her with an incorrect name as well as an incorrect shield number (**Allegation L**).

Video for this incident was obtained from a nearby KFC. The video is small and low in quality, and its quality was further reduced by Snag It. The original video is located in IA #85 and must be unpacked and viewed with a special player, EZViewLog500. Once the player is opened, the relevant video file on the submenu is labeled 13:41:19.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was ineligible for mediation due to the property damage allegations made by § 87(2)(b) and § 87(2)(b) [see 01-02 Board Review].

A Notice of Claim Inquiry filed with the Office of the New York City Comptroller produced negative results on November 12, 2015 [see 03 Board Review].

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) [see 06 Board Review].

This is the tenth CCRB complaint filed against Sgt. Sinatra during his eight year tenure. It has previously been alleged that he refused to provide his name or shield number on three other occasions. In case 201506484, the Board substantiated a refusal to provide name and shield number [see 07 Board Review]. Vehicle stop and vehicle search allegations have been made against him on two other occasions. In case 201502100, the vehicle stop allegation was exonerated and the vehicle search was unsubstantiated. In case 201506484, the vehicle search allegation was substantiated [see 07 Board Review]. Sgt. Sinatra has been the subject of physical force allegations on two other occasions. The allegations were unsubstantiated and exonerated.

This is the fifth CCRB complaint filed against PO Moy during his five year tenure. He has previously been the subject of a vehicle stop allegation, which was closed as complainant uncooperative. He has been the subject of a search allegation on two previous occasions. Both were closed as unsubstantiated. An allegation that PO Moy refused to provide his name and shield number in case 201506377 was unsubstantiated [see 08 Board Review].

This is the fifth CCRB complaint filed against Det. Roidis during his 11 year tenure. It has previously been alleged that Det. Roidis refused to provide his name and shield number on two other occasions. In case 200713448, this allegation was closed as unfounded [see 09 Board Review]. In case 201506377, the allegation was unsubstantiated [see 08 Board Review].

This is the fifth CCRB complaint filed against Det. Balcena during her eight year tenure. In case 201506484, it was alleged that Det. Balcena frisked and searched an individual and that individual's vehicle. The Board substantiated the allegations [see 07 Board Review]. She has not had any other allegations substantiated against her.

Findings and Recommendations

Allegations Not Pleaded

Abuse of Authority: Vehicle stop.

Abuse of Authority: Search of person.

During their interviews, § 87(2)(b) and § 87(2)(b) stated that they had been pulled over previously by Sgt. Sinatra, who then searched them. § 87(2)(b) stated that she was providing this information for background and was not filing a complaint about those incidents, for which she was unable to provide a date.

Allegation A – On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Sgt. Mark Sinatra stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, PO Eric Moy stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that her husband, § 87(2)(b) dropped her off at the methadone clinic at § 87(2)(b) and § 87(2)(b). He then parked his sand-colored 1995 Cadillac El Dorado between the clinic and the White Castle restaurant. § 87(2)(b) waited for § 87(2)(b) who exited the clinic ten minutes later after being medicated. According to § 87(2)(b) the street was empty; she did not speak with or exchange items with anyone on her way to § 87(2)(b) car. § 87(2)(b) was still in the car when she got in. § 87(2)(b) put her seatbelt on before § 87(2)(b) began to drive away. § 87(2)(b) denied that she and § 87(2)(b) exchanged any objects between themselves. § 87(2)(b) denied that either she or § 87(2)(b) had consumed alcohol or smoked marijuana that day, and she stated that there were no loose items visible in the car.

As § 87(2)(b) drove away, an unmarked RMP, which § 87(2)(b) described as a black Nissan Murano, pulled out from a driveway between the KFC and White Castle Restaurants, activated its lights and sirens, and cut in front of § 87(2)(b) vehicle. According to § 87(2)(b) Sgt. Sinatra informed § 87(2)(b) that he had received a report of a stolen car that looked similar to § 87(2)(b) car. § 87(2)(b) stated that she believed that Sgt. Sinatra recognized § 87(2)(b) car because he had previously stopped and searched § 87(2)(b) and § 87(2)(b) [see 01 Board Review].

§ 87(2)(g) He acknowledged that he dropped her off at the methadone clinic and waited for her in his car. § 87(2)(b) viewed a Google Maps photo of the location during his CCRB interview, and he pointed out that he was parked directly in front of the White Castle restaurant in a lane marked “Bus Only” [see 18 Board Review].

According to § 87(2)(b), § 87(2)(b) was inside of the methadone clinic for less than 20 minutes. No one approached § 87(2)(b) car while he waited. § 87(2)(b) observed three men that he believed to be plainclothes officers in the White Castle parking lot. § 87(2)(b) stated that the officers appeared to be searching a Jeep.

When § 87(2)(b) got back into the car, she put on her seatbelt and § 87(2)(b) began to drive. § 87(2)(b) stated that neither exchanged any objects inside the car. As § 87(2)(b) began to drive away, those same officers drove their unmarked black RMP out of the White Castle parking lot. § 87(2)(b) stated that he attempted to wait and let them go, but the officers' vehicle remained stopped. § 87(2)(b) stated that he had begun moving forward again when the officers came out behind him, sounded their siren, and then cut him off by stopping in front of his vehicle. § 87(2)(b) denied using his cell phone or committing any VTL violations before being stopped. § 87(2)(b) also revealed that Sgt. Sinatra cited a report of a stolen car as the reason for stopping § 87(2)(b). § 87(2)(g)

Video obtained from the nearby KFC showed that § 87(2)(b) vehicle was moving slowly in the bus lane immediately before it was stopped. It did not show if he was parked there for any length of time [see 24 Board Review].

Sgt. Sinatra testified that he observed § 87(2)(b) vehicle parked in a no standing zone. He revealed that the location is narcotics-prone but stated that the parking violation was the only thing that drew his attention to § 87(2)(b) vehicle at that time. According to Sgt. Sinatra, he and PO Moy observed § 87(2)(b) enter § 87(2)(b) car through the passenger's door, sit down, and close the door, at which point the two conducted a hand to hand transaction inside the vehicle. Sgt. Sinatra explained that, drawing from his experience with prior narcotics arrests stemming from hand to hand transactions, Sgt. Sinatra believed that money and drugs were exchanged. However, Sgt. Sinatra revealed that he did not actually see the objects, money or otherwise, that he believed was exchanged. When pressed for additional detail, Sgt. Sinatra was only able to describe the alleged transaction as "his hand to hers." Sgt. Sinatra stated that he and PO Moy observed § 87(2)(b) vehicle for a "short time" before stopping it for the parking violation by activating the RMP's turret lights and siren. He made no mention of a report of a stolen car and did not remember having any prior interactions with § 87(2)(b) or § 87(2)(b) [see 10 Board Review].

PO Moy also described the vicinity of § 87(2)(b) and § 87(2)(b) as narcotics prone with a history of drug activity, including the possession or sale of heroin, crack-cocaine, and marijuana. § 87(2)(g)

§ 87(2)(b) he also stated that its being parked in a no standing zone was the only thing which initially drew his attention to § 87(2)(b) car. According to PO Moy, he and Sgt. Sinatra observed § 87(2)(b) car for three to five minutes before making a collective decision to approach it. He stated that their intent was to either issue a summons or exercise their right to warn and admonish.

PO Moy testified that he and Sgt. Sinatra were walking toward § 87(2)(b) car when he observed § 87(2)(b) and § 87(2)(b) shake hands inside the car. He stated that it appeared that § 87(2)(b) handed § 87(2)(b) small white pills, and § 87(2)(b) gave § 87(2)(b) a green piece of paper, which he believed to be U.S. currency. PO Moy denied that he and Sgt. Sinatra discussed the hand to hand transaction before arriving at § 87(2)(b) car, though he later learned from Sgt. Sinatra that Sgt. Sinatra had observed pills in a bottle in the center console,

Allegation C – Force: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Sgt. Mark Sinatra used physical force against § 87(2)(b)

§ 87(2)(b) stated that Sgt. Sinatra instructed him to exit the vehicle and stand at its rear. § 87(2)(b) stated that he noticed PO Moy searching § 87(2)(b) as Det. Roidis held her arm near the passenger's door, prompting him to watch their interaction. He also acknowledged that he protested the search verbally. According to § 87(2)(b) Sgt. Sinatra then shoved § 87(2)(b) toward the rear of the car by placing one hand on his back as he said, "Yo, I said get to the back..." Once at the rear of the vehicle, § 87(2)(b) protested PO Moy's search of § 87(2)(b) (see allegation D) [see 02 Board Review].

§ 87(2)(b) testified that Sgt. Sinatra asked § 87(2)(b) to step out of the car after informing him that he had received a report of a stolen vehicle that looked similar to § 87(2)(b) car. § 87(2)(b) also revealed that PO Moy asked her to exit the vehicle at about the same time. She made no mention of Sgt. Sinatra pushing § 87(2)(b) but acknowledged that § 87(2)(b) protested as PO Moy began to search her [see 01 Board Review].

Video obtained from KFC was unclear in showing whether Sgt. Sinatra shoved § 87(2)(b). The video did, however, place Sgt. Sinatra at the driver's side of the vehicle at the point the push was alleged. Although the quality of the video is low and does not show faces, the officer who is seen exiting from the front passenger's door of the RMP, which would have been the sergeant's position, is alone at the driver's side of § 87(2)(b) car at the aforementioned time. Sgt. Sinatra, who testified that only he and PO Moy were in his RMP, stated in his interview that PO Moy was the driver. In his interview, Det. Roidis confirmed that Sgt. Sinatra was sitting in the front passenger's seat of his RMP prior to the stop. PO Moy and Det. Roidis appear to be at the front passenger's door at that point in the video. According to the video, neither Det. Katris nor Det. Balcena was on scene at the time the push occurred [see 24 Board Review].

Sgt. Sinatra testified that he approached the passenger's side of § 87(2)(b) vehicle while PO Moy went to the driver's side. Sgt. Sinatra described that § 87(2)(b) who was in the driver's seat, was yelling, which ultimately served as the only factor influencing his decision to instruct the occupants to exit their car for safety reasons. According to Sgt. Sinatra, § 87(2)(b) was calmer once outside the car. Sgt. Sinatra stated that § 87(2)(b) and § 87(2)(b) were compliant with the officers' requests to exit their vehicle, and that they walked to its rear. Sgt. Sinatra did not describe any difficulties in getting § 87(2)(b) to the rear of the car. He acknowledged following § 87(2)(b) and § 87(2)(b) to the back of the car but denied shoving § 87(2)(b) or seeing any other officer do so [see 10 Board Review].

PO Moy also testified that he was on the driver's side while Sgt. Sinatra spoke to § 87(2)(b) and § 87(2)(b) from the passenger's side. PO Moy § 87(2)(g) § 87(2)(b) stating that § 87(2)(b) was yelling but added that he was also waving his arms. He revealed that Sgt. Sinatra asked both occupants to step out of the vehicle, and that he believed that the only factor influencing this decision was § 87(2)(b) behavior. PO Moy stated that he escorted § 87(2)(b) to the rear of the vehicle while Sgt. Sinatra remained on the passenger's side. PO Moy denied shoving § 87(2)(b) or seeing Sgt.

Sinatra do so. According to PO Moy, § 87(2)(b) irate behavior continued until after Det. Katris arrived [see 11 Board Review].

Det. Roidis denied remembering which side of the vehicle each officer was on, but he confirmed that Sgt. Sinatra was sitting in the front passenger's seat of the RMP prior to the stop. Det. Roidis claimed to have been at the rear of § 87(2)(b) vehicle. Det. Roidis acknowledged that § 87(2)(b) and § 87(2)(b) exited their vehicle but denied knowing if they had been instructed to do so by Sgt. Sinatra or PO Moy. Det. Roidis did not observe any behavior by either § 87(2)(b) or § 87(2)(b) which made him fear for his safety, and he did not ask them to step out of the vehicle. He denied ever learning why they exited their vehicle. Det. Roidis denied observing Sgt. Sinatra push § 87(2)(b) at any point [see 15 Board Review].

Det. Balcena and Det. Katris both testified that § 87(2)(b) and § 87(2)(b) were already at the rear of the car when they arrived. As such, they would not have been in a position to see if Sgt. Sinatra shoved § 87(2)(b) as described. Det. Katris added that § 87(2)(b) called the situation “bullshit” and waved his hands as he spoke to Det. Katris, though he described § 87(2)(b) hand motions as “nothing crazy [see 16-17 Board Review].

Patrol Guide procedure 203-11 states that an officer at the scene of a police incident must use the minimum force necessary [see 19 Board Review].

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **allegation C** be closed as

substantiated.

Allegation D – Abuse of Authority: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, PO Eric Moy searched § 87(2)(b)

Allegation E – Abuse of Authority: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Sgt. Mark Sinatra searched § 87(2)(b)

Allegation J – Abuse of Authority: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Det. Delcar Balcena searched § 87(2)(b)

§ 87(2)(b) claimed that she was searched by PO Moy after she exited the vehicle but before being escorted to the rear. According to § 87(2)(b) PO Moy placed his hands deep into her pockets. § 87(2)(b) also stated that Det. Roidis held her arm as she was searched, but she denied doing anything with her body to prevent the search. As noted above, § 87(2)(b) denied exchanging any items with § 87(2)(b) or any other individuals during this incident. § 87(2)(b) revealed that she had only a book of matches, ID, and a tissue in her pockets.

According to § 87(2)(b) Det. Balcena arrived later in the incident and conducted a search of her person by reaching into her pants pockets. Det. Balcena also instructed § 87(2)(b) to place some of her items, which were on the car's trunk, back into her pockets. § 87(2)(b) denied remembering when exactly the items were removed, but she thought that PO Moy may have removed them. § 87(2)(b) revealed that § 87(2)(b) later informed her that he had also been searched but did not specify any details concerning the search. She did not witness the search of § 87(2)(b) [see 01, 28 Board Review].

§ 87(2)(b) § 87(2)(g) that PO Moy placed his hands into her pockets as she stood near the passenger's door, and that Det. Roidis held § 87(2)(b)'s arm as she was searched. § 87(2)(b) also denied exchanging any items with § 87(2)(b) during this incident. § 87(2)(b) also alleged that Sgt. Sinatra reached into § 87(2)(b)'s back pants pocket and removed his phone before placing him against the trunk of the car [see 02 Board Review].

As described above, Sgt. Sinatra testified that he observed what he believed to be a hand to hand transaction between § 87(2)(b) and § 87(2)(b) after § 87(2)(b) entered the car; however, he did not see the objects which he believe were exchanged. Sgt. Sinatra placed this action as occurring before he and PO Moy exited their RMP. Sgt. Sinatra stated that he and PO Moy visually checked the center console after § 87(2)(b) and § 87(2)(b) exited the vehicle, and they observed loose, circular, blue pills in the open cup holder of the center console. He did not remember how many pills were in that area but stated that he used his year and a half experience obtained at Queens Narcotics to determine that the pills were not of the controlled substance variety. Sgt. Sinatra stated that he later asked § 87(2)(b) about the pills. According to Sgt. Sinatra, § 87(2)(b) replied that they were his blood pressure medication. This response, according to Sgt. Sinatra, factored into his determination that the pills were not a controlled substance. Sgt. Sinatra denied observing any officer place his hands into her pockets. He denied remembering § 87(2)(b) being searched outside of the vehicle. He stated that he did not see any female officer search § 87(2)(b). Sgt. Sinatra also denied searching § 87(2)(b) or seeing any officer do so [see 10 Board Review].

§ 87(2)(g) PO Moy's § 87(2)(g) § 87(2)(b) claimed that he observed § 87(2)(b) and § 87(2)(b) shake hands and exchange small white pills and currency as he and Sgt. Sinatra were approaching the car to stop it for a parking violation. PO Moy stated that he escorted § 87(2)(b) to the rear of the vehicle and did not see what Sgt. Sinatra was doing because he was watching § 87(2)(b) and § 87(2)(b). Sgt. Sinatra remained at the passenger's side of the car. PO Moy denied that he placed his hands in her pockets, or searched her. He denied having any fear for his safety in regards to § 87(2)(b) or receiving information from any officer concerning a safety threat in regards to § 87(2)(b). PO Moy did not see any officer search § 87(2)(b) or § 87(2)(b) and did not hear Sgt. Sinatra instruct any officer to do so [see 11 Board Review].

Det. Roidis stated that he was "all over the place," moving about, and socializing with other members of his team throughout this incident. According to Det. Roidis, there was no rhyme or reason for his moving around, but he stated that his movement was not related to police activity; he was socializing because the situation seemed to be under control. Det. Roidis denied observing any suspicious behaviors on the part of the occupants prior to approaching their vehicle. He also

denied observing or hearing any officer discuss pills inside the car. Det. Roidis denied searching § 87(2)(b) or § 87(2)(b) or seeing PO Moy or Sgt. Sinatra search either of them. When asked if Det. Balcena searched § 87(2)(b) he stated that he did not witness this but assumed that Det. Balcena did so. After being told not to assume by his DEA representative, Det. Roidis said that he was not going to assume and did not know if Det. Balcena searched § 87(2)(b). He stated that he was not paying attention and did not see if Det. Balcena conducted a search of § 87(2)(b). Det. Roidis denied seeing Sgt. Sinatra search the civilians' vehicle at any point [see 15 Board Review].

As noted above, both Det. Balcena and Det. Katris testified that they arrived after § 87(2)(b) and § 87(2)(b) were escorted to the rear of the car. According to their testimonies, they were not in position to see the alleged hand to hand transaction [see 16-17 Board Review]. The video confirmed that they were not on scene when the vehicle was first stopped [see 24 Board Review].

Det. Balcena stated that § 87(2)(b) driver's door was open when she arrived on scene, but she did not know the reason for the stop or why the occupants were removed from the vehicle. She stated that she knew of § 87(2)(b) and § 87(2)(b) from information provided by other arrestees from unrelated incidents who suggested that § 87(2)(b) and § 87(2)(b) sell their medications from the methadone clinic. She did not remember if § 87(2)(b) or § 87(2)(b) had ever been arrested for the aforementioned offense but acknowledged that she had interacted with § 87(2)(b) previously and had a "good relationship" with her.

Det. Balcena acknowledged that she spoke with § 87(2)(b) who she believed was wearing spandex-style pants. Det. Balcena stated that she believed that she would have been able to see any objects hidden under § 87(2)(b)'s pants. She denied remembering if she frisked or searched § 87(2)(b) though she denied fearing for her safety during the incident and also denied being informed that any officer was in fear of his own safety.

Det. Balcena denied witnessing any officer reach into § 87(2)(b)'s pockets. According to Det. Balcena, neither § 87(2)(b) nor § 87(2)(b) complained that an officer had searched them [see 17 Board Review].

§ 87(2)(g)

In regards to this incident, Det. Katris testified that he was speaking with § 87(2)(b) while Det. Balcena dealt with § 87(2)(b). Det. Katris stated that he was focused on § 87(2)(b) who was upset, waving his hands, and turning around to try to look toward his own car, and he denied seeing if Det. Balcena or any other officer searched § 87(2)(b). Det. Katris did not know what was drawing § 87(2)(b) attention toward his own car but ultimately handcuffed § 87(2)(b) for failure to obey his instructions to stop the previously mentioned behaviors. He did not know if any officer feared for his or her safety in regards to § 87(2)(b). Det. Katris did not remember if he searched § 87(2)(b) or if any officer searched him [see 16 Board Review]. Video evidence obtained from KFC revealed that Sgt. Sinatra and Det. Roidis approached the driver's side of the vehicle at the same time. PO Moy moved the RMP up slightly and then exited

from the driver's door seconds later. § 87(2)(b) opened her door before PO Moy exited his RMP and approximately five seconds after Sgt. Sinatra and Det. Roidis arrive at the driver's side. PO Moy approached the passenger's side as Det. Roidis rounded the rear of the car to meet him there. Although PO Moy and Det. Roidis stand with § 87(2)(b) in the area of the passenger's door for several seconds, due to the small size and low quality of the video, as well as the fact that PO Moy and Det. Roidis were wearing dark colored clothing, it is unclear if either officer searched

§ 87(2)(b)

At about the 2:47 minute mark of the video, § 87(2)(b) who was moved off to the side and slightly away from the rear of the vehicle, is seen with her arms raised from her sides. Because the video quality was decreased when converted by Snag It, this action is not clearly seen in the attached version. Although distinct identifying features are not seen, the officer who interacted with § 87(2)(b) at that point came from Det. Balcena's unmarked black minivan [see 24 Board Review].

People v. De Bour (40 N.Y.2d 210) states that an officer must have probable cause to believe that a crime has been committed before searching an individual [see 20 Board Review]. As per **People v. Oden (36 N.Y.2d 382)**, "The mere passing of a glassine envelope in a neighborhood in which narcotics were known to have been present, unsupplemented by additional relevant behavior or circumstances found to exist, was insufficient to raise the level of inference from suspicion to probable cause" [see 21 Board Review].

All of the officers testified that the location of the incident was a narcotics prone location.

§ 87(2)(g)

§ 87(2)(b) Sgt. Sinatra offered no description of the objects he believed were exchanged, yet PO Moy observed small white pills and currency. Contrary to the officers' statements, which included Sgt. Sinatra's and PO Moy's assertion that they were the only officers on scene at that time, the video shows that Det. Roidis approached § 87(2)(b) car from the front with Sgt. Sinatra while PO Moy exited from the driver's door of the RMP seconds later. § 87(2)(g)

no white pills or any illegal narcotics were recovered.

§ 87(2)(g)

It is therefore recommended that **allegations D and E** be closed as **substantiated**.

Det. Balcena provided a detailed statement concerning her interaction with § 87(2)(b) her prior knowledge of § 87(2)(b) and § 87(2)(b) and even stated that she had a "good relationship" with § 87(2)(b) Specifically, Det. Balcena testified that § 87(2)(b) was wearing spandex

it is recommended that **allegation J**

substance. Sgt. Sinatra stated that he observed the pills from the outside of the vehicle and never entered or searched § 87(2)(b) car. Sgt. Sinatra denied reaching into § 87(2)(b) car and stated that he used only his eyesight to examine the pills.

PO Moy denied observing pills inside the car. He revealed that he learned about them when Sgt. Sinatra spoke to him at the rear of the vehicle, informing PO Moy that he had observed in plain view pills in a bottle in the center console. PO Moy stated that Sgt. Sinatra may have determined that the pills were not of the controlled substance variety by utilizing a phone application. PO Moy denied observing Sgt. Sinatra search § 87(2)(b) vehicle in any way [see 11 Board Review].

As detailed above, Det. Roidis stated that he was busy socializing and was not paying attention to his fellow officers. Det. Roidis denied seeing Sgt. Sinatra search the civilians' vehicle at any point [see 15 Board Review].

Det. Balcena also denied observing Sgt. Sinatra reach into § 87(2)(b) car at any point. She stated that she had no belief that there were drugs in § 87(2)(b) car that day [see 17 Board Review].

Det. Katris testified that he was at the rear of the vehicle with § 87(2)(b). As described earlier, § 87(2)(b) was reportedly acting in an irate manner, causing Det. Katris to focus only on him. Det. Katris denied witnessing any officer search § 87(2)(b) car [see 16 Board Review].

The video did not capture any footage that occurred prior to the stop of § 87(2)(b) vehicle. However, the video showed that Sgt. Sinatra, who was wearing a light colored shirt, exited from the front passenger's door of his RMP. He then approached the driver's side of § 87(2)(b) car. At the 47 second mark of the video, Sgt. Sinatra leaned forward as he stood by the driver's door and disappeared from view. It is unclear if the driver's door is open or what actions Sgt. Sinatra took. Sgt. Sinatra popped back into view at the 54 second mark, still at the driver's door. He then rounded the front of the car, approached the open passenger's front door, and leaned his upper body fully inside the car at the 1:13 minute mark. Sgt. Sinatra backed out of the car at the 1:39 minute mark and walked to the rear of § 87(2)(b) vehicle. At the 1:59 minute mark, Sgt. Sinatra returned to the open passenger's front door and entered it once again in the same fashion. He exited the car at the 2:05 minute mark but entered it again at the 2:10 minute mark through the same door, where he remained until the end of the video at the 4:15 minute mark. Sgt. Sinatra's body disappeared completely from view several times during that time.

In order to search a vehicle, an officer must have validly arrested an individual and have reason to believe that the car may contain evidence related to the crime for which the individual was arrested. **People v. Carbone (184 A.D.2d 648)** [see 22 Board Review].

Sgt. Sinatra stated that he spoke with § 87(2)(b) and § 87(2)(b) for approximately one minute before § 87(2)(b) irate behavior caused him to ask them to exit the vehicle. The video showed that § 87(2)(b)'s door opened approximately five seconds after Sgt. Sinatra arrived at the vehicle, with both occupants exiting in the following seconds, suggesting that he immediately

instructed them to step out. No contraband was found during the searches of § 87(2)(b) and § 87(2)(b) and they were not under arrest at the time Sgt. Sinatra searched their vehicle.

§ 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that allegation F be closed as **substantiated**.

Allegation G – Abuse of Authority: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Sgt. Mark Sinatra refused to provide his shield number to § 87(2)(b)

Allegation H – Abuse of Authority: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, PO Eric Moy refused to provide his shield number to § 87(2)(b)

Allegation I – Abuse of Authority: On August 5, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Det. Dimitrios Roidis refused to provide his shield number to § 87(2)(b)

Allegation L – Abuse of Authority: On August 7, 2015, at § 87(2)(b) and § 87(2)(b) in Queens, Sgt. Mark Sinatra refused to provide his name and shield number to § 87(2)(b)

[REDACTED] testified that § 87(2)(b) asked Sgt. Sinatra for his shield number as he searched § 87(2)(b) car. According to § 87(2)(b) Sgt. Sinatra then told the other officers to handcuff § 87(2)(b). § 87(2)(b) was handcuffed, and Sgt. Sinatra continued his search without providing his shield number to § 87(2)(b).

§ 87(2)(b) revealed that she saw Sgt. Sinatra in the vicinity of § 87(2)(b) and § 87(2)(b) on August 7, 2015, two days after the initial incident and just prior to her CCRB interview. She did not specify if § 87(2)(b) was with her at the time. § 87(2)(b) stated that she approached Sgt. Sinatra and asked for his name and shield number. Sgt. Sinatra reportedly provided his name as “Santana” and his shield number as “28505.” § 87(2)(b) wrote this information down along with the license plate of Sgt. Sinatra’s small black SUV, which was § 87(2)(b) [see 01 Board Review].

§ 87(2)(b) testified that Sgt. Sinatra approached him at the rear of the car after PO Moy searched § 87(2)(b). He reported that he informed Sgt. Sinatra, PO Moy, and Det. Roidis that he was upset about the search of § 87(2)(b) and then asked for all of their shield numbers. § 87(2)(b) he was handcuffed by Sgt. Sinatra following

the request, and that no officer responded. § 87(2)(b) stated that he requested the officers' shield numbers a second time, but they only laughed in response.

§ 87(2)(b) also testified that he and § 87(2)(b) observed Sgt. Sinatra on August 7, 2015. § 87(2)(g)

§ 87(2)(b) presented a piece of paper during his CCRB interview, which featured the following information handwritten by § 87(2)(b) "28505, Santana, plainclothes. License plate today was § 87(2)(b)." § 87(2)(b) stated that this information, aside from the license plate, was provided verbally by Sgt. Sinatra and that the RMP was the same as he saw on August 5, 2015 [see 02 Board Review].

Sgt. Sinatra's memo book confirmed that he was working on August 7, 2015, and that he was in the vicinity of § 87(2)(b) and § 87(2)(b) that morning [see 27 Board Review].

Sgt. Sinatra did not remember if § 87(2)(b) or § 87(2)(b) asked for his or any other officer's name or shield number on August 5, 2015. Sgt. Sinatra denied refusing to provide his information or hear any officer refuse to provide his or her information. He denied having any memory of interacting with § 87(2)(b) or § 87(2)(b) in the days after August 5, 2015. He also denied providing his name as "Santana" or his shield number as "28505," though he acknowledged that "28505" was his shield number when he was a police officer prior to his promotion four and a half years prior to this incident [see 10 Board Review].

PO Moy testified that neither § 87(2)(b) nor § 87(2)(b) asked for his name or shield number on August 5, 2015. He denied refusing to provide this information or hearing any officer refuse to provide his or her information. PO Moy denied having any interaction with § 87(2)(b) or § 87(2)(b) after August 5, 2015 [see 11 Board Review].

Det. Roidis denied that § 87(2)(b) or § 87(2)(b) asked for his or any other officer's name or shield number during the incident on August 5, 2015. He did not hear any officer refuse to provide this information. Det. Roidis denied hearing Sgt. Sinatra provide his name as "Santana" or shield number as "28505" at any point. According to Det. Roidis, he had no interaction with § 87(2)(b) or § 87(2)(b) after August 5, 2015 [see 15 Board Review].

Det. Katris stated that he, not Sgt. Sinatra, handcuffed § 87(2)(b). He also stated that he provided his name and shield number verbally at the request of § 87(2)(b) and § 87(2)(b). According to Det. Katris, this occurred as the stop concluded. Det. Katris denied hearing § 87(2)(b) or § 87(2)(b) ask for any other officer's information or hearing any officer refuse to provide their information. Det. Katris denied seeing § 87(2)(b) or § 87(2)(b) after August 5, 2015 [see 16 Board Review].

Det. Balcena denied hearing § 87(2)(b) or § 87(2)(b) ask for any officer's name or shield number. She did not hear Sgt. Sinatra provide the name or shield number listed above [see 17 Board Review].

The tactical plan for August 5, 2015, confirmed that Sgt. Sinatra was assigned to a black Subaru Forester, which matches the civilians' description of a small black SUV Sgt. Sinatra used on both August 5, 2015 and August 7, 2015 [see 14 Board Review].

According to **Patrol Guide procedure 203-09**, members of the service are required to courteously and clearly provide their names and shield numbers upon request [see 23 Board Review].

§ 87(2)(g) [REDACTED]

[REDACTED] It is therefore recommended that **allegations G, H, and I, and L** be closed as **substantiated**.

Allegation K – Abuse of Authority: On August 5, 2015, at § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] in Queens, Sgt. Mark Sinatra damaged § 87(2)(b) [REDACTED] property.

§ 87(2)(b) [REDACTED] testified that several parts of § 87(2)(b) [REDACTED] 1995 Cadillac El Dorado, including the HVAC vent, speaker grilles, center console, and cup holders were damaged by Sgt. Sinatra when he searched the car. She stated that she was unable to see Sgt. Sinatra as he searched the car because she was made to face away from the vehicle as she stood at its rear. § 87(2)(b) [REDACTED] provided 11 photos showing the damage [see 01, 26 Board Review].

§ 87(2)(b) testified that the interior of his car was “torn up” when he returned to it. He and § 87(2)(b) provided 11 photos detailing damage to interior trim pieces, HVAC vents, speaker grilles, cup holders, and the center console. He stated that this damage resulted from Sgt. Sinatra’s search of the vehicle [see 02 Board Review].

Sgt. Sinatra denied having a clear memory of the vehicle’s condition when he first observed it but stated that he thought it may have been messy. He stated that he observed pills in the center console but denied searching it. Sgt. Sinatra was shown the photos of the damage during his interview [see 26 Board Review]. He stated that he did not recall taking any actions or seeing any actions which could have caused the damage featured in the photos. Sgt. Sinatra denied removing the HVAC vents or speaker grilles. As previously mentioned, he denied entering the car at any point [see 10 Board Review].

PO Moy denied seeing Sgt. Sinatra in the vehicle or observing him taking any actions which could have damaged the vehicle’s interior. Det. Roidis also denied observing Sgt. Sinatra search the car or hearing § 87(2)(b) or § 87(2)(b) complain of damage to it [see 11 Board Review].

Det. Katris denied looking into § 87(2)(b) vehicle and therefore did not see any damage to it. He denied that either civilian complained of damage to the car [see 16 Board Review].

Det. Balcena denied seeing any officer inside of § 87(2)(b) car. She stated that she did not see anything unusual about the vehicle’s condition or know if it was “torn up” inside [see 17 Board Review].

As noted above, the video obtained from KFC showed that Sgt. Sinatra entered § 87(2)(b) car from both the driver’s side and passenger’s side, remaining inside the car for several minutes [see 24 Board Review].

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation K** be closed as **substantiated**.

§ 87(4-b), § 87(2)(g)

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date